No. 25-3320

IN THE UNITED STATES COURT OF APPEALS
FOR THE EIGHTH CIRCUIT

DESMOND BANKS, individually and on behalf of a class of similarly situated individuals,

Plaintiff–Appellant,

v.

COSTAR REALTY INFORMATION, INC., a Delaware corporation,

Defendant–Appellee.

On Appeal from the United States District Court
For the Eastern District of Missouri, No. 4:25-cv-00564-CMS
The Honorable Cristian M. Stevens

Response Brief for Appellee CoStar Realty Information, Inc.

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SUMMARY OF THE CASE AND STATEMENT ON ORAL ARGUMENT

The district court dismissed Plaintiff Desmond Banks's single claim under the Video Privacy Protection Act (the Act) against Defendant CoStar Realty Information, Inc. (CoStar) on multiple independently sufficient grounds. It held that CoStar is not a regulated "video tape service provider" because its apartment-listing website does not deliver video cassette tapes or similar physical items and, in any event, is not a video delivery business. The court held that Plaintiff is not a protected "consumer" under the Act because he does not allege a subscription that entitled him to relevant goods or services. And the court held that Plaintiff does not allege he was subject to a disclosure of "personally identifiable information" because his complaint alleged no meaningful factual content concerning the information disclosed. On these and other grounds, the court's judgment stands unimpeachable.

CoStar does not view the questions presented as difficult—especially given that the Court can affirm on any of the independent grounds, however narrow—and takes no position whether the Court should entertain oral argument.

CORPORATE DISCLOSURE STATEMENT

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Pursuant to Federal Rule of Appellate Procedure 26.1 and Eighth Circuit Rule 26.1A, Defendant-Appellee CoStar Realty Information, Inc. hereby states that it is a wholly owned subsidiary of its parent company CoStar Group Inc., which is publicly traded on the NASDAQ exchange.

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eighth Circuit Rule 26.1A, Defendant-Appellee CoStar Realty Information, Inc. hereby states that it is a wholly owned subsidiary of its parent company CoStar Group Inc., which is publicly traded on the NASDAQ exchange.

Dated: April 29, 2026

/s/ Bonnie Keane DelGobbo
Bonnie Keane DelGobbo

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STATEMENT
STATEMENT

Congress passed the Video Privacy Protection Act (the Act) to regulate a multi-billion-dollar industry that was then prominent but has mostly vanished today. Addressing the concern that employees of video rental stores could embarrass patrons by disclosing their rental records—which happened to Judge Robert Bork—Congress built the Act around the term "video tape." That was a physical object that could be bought, sold, rented, and delivered, as they were on a massive scale in 1988.

This case is one of many attempts to convert the Act into an expansive internet-privacy regulation that forbids some—but not most—tools for targeted advertising. Technology like the "Meta Pixel" provides means by which computers communicate with each other with little or no human involvement so that advertisements may be disseminated in maximally efficient fashion, matching marketing content with similar content accessed on a given device or account. This creates the likelihood that internet users receive advertisements that interest them. Reasonable minds can and do differ on the merits of this technology, and different types of coherent legislation could balance privacy concerns against efficiencies and benefits it creates. But the Act has nothing to do with these questions.

Applying a law governing the "video tape" industry in this way is more than a textual distortion. As discussed below, it would subject the worldwide internet to just about the most incoherent system imaginable—one that Congress

STATEMENT OF JURISDICTION

The district court had jurisdiction over Plaintiff's federal claim, which was timely removed from state court, under the federal-question statute, 28 U.S.C. § 1331, and the

STATEMENT OF ISSUES

1. Does a statute regulating persons engaged in "the business" of "video cassette tapes or similar audio visual materials," 18 U.S.C. § 2710(a)(3), reach a rental-listing website that enables property owners to design pages as they please, with or without web-based prerecorded video?

Apposite Authority: *Christopherson v. Cinema Ent. Corp.*, 161 F.4th 525 (8th Cir. 2025); *Pileggi v. Washington Newspaper Publ'g Co., LLC*, 146 F.4th 1219 (D.C. Cir. 2025) (Randolph, J., concurring).

2. Does a statute protecting "any renter, purchaser, or subscriber of goods or services from a video tape service provider," 18 U.S.C. § 2710(a)(1), apply where Plaintiff alleges only that he created an account on apartments.com, but not that he received any goods or services, much less video related goods or services?

Apposite Authority: *Colson v. Hennepin County*, 169 F.4th 773, 776 (8th Cir. 2026) (pleading standard); *Ellis v. Cartoon Network, Inc.*, 803 F.3d 1251, 1256 (11th Cir. 2015); *Yershov v. Gannett Satellite Info. Network, Inc.*, 820 F.3d 482, 489 (1st Cir. 2016); *Perry v. CNN*, 854 F.3d 1336 (11th Cir. 2017).

3. Does a statute regulating disclosure of "information which identifies a person as having requested or obtained specific video materials or services," 18 U.S.C. § 2710(a)(3), apply where a complaint alleges hypothetical ways in

which transmission of numbers and letters inscrutable to any person might have occurred?

Apposite Authority: *Solomon v. Flipps Media, Inc.*, 136 F.4th 41, 54 (2d Cir.), *cert. denied*, 146 S. Ct. 885 (2025); *Eichenberger v. ESPN, Inc.*, 876 F.3d 979 (9th Cir. 2017); *In re Nickelodeon Consumer Priv. Litig.*, 827 F.3d 262, 284 (3d Cir. 2016).

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4. Is a plaintiff who did not ask the district court for leave to amend, provide a proposed amended pleading, identify substance that could in good faith be added in an amended pleading, or seek relief from an adverse judgment entitled to an appellate order directing leave to replead?

Apposite Authority: *Park Irmat Drug Corp. v. Express Scripts Holding Co.*, 911 F.3d 505 (8th Cir. 2018); *United States v. Mask of Ka-Nefer-Nefer*, 752 F.3d 737 (8th Cir. 2014); *PACK Private Cap., LLC v. Associated Bank, N.A.*, 155 F.4th 981 (8th Cir. 2025); *Drobnak v. Andersen Corp.*, 561 F.3d 778 (8th Cir. 2009).

4. Is a plaintiff who did not ask the district court for leave to amend, provide a proposed amended pleading, identify substance that could in good faith be added in an amended pleading, or seek relief from an adverse judgment entitled to an appellate order directing leave to replead?

Apposite Authority: *Park Irmat Drug Corp. v. Express Scripts Holding Co.*, 911 F.3d 505 (8th Cir. 2018); *United States v. Mask of Ka-Nefer-Nefer*, 752 F.3d 737 (8th Cir. 2014); *PACK Private Cap., LLC v. Associated Bank, N.A.*, 155 F.4th 981 (8th Cir. 2025); *Drobnak v. Andersen Corp.*, 561 F.3d 778 (8th Cir. 2009).

STATEMENT OF THE CASE

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A. Background

1. A "videotape" is "the magnetic tape used for recording images and sound." Webster's Ninth New Collegiate Dictionary 1314 (1987) (Webster's 1987); *see also* The American Heritage Dictionary of the English Language, New College Edition 1428 (1976) (American Heritage 1976) ("[a] relatively wide magnetic tape . . . used to record television images" (boldface omitted)). "A relatively simple looking device," it "contains two small spools of magnetic tape, including the supply reel and the take-up reel," totaling "about 1,140 feet of tape (nearly four football fields), and about 4 hours of footage." Mollee Shannon, History of the VHS Tape, aperture: A Kodak Digitizing Blog.[1]

Magnetic tape was used in the professional film industry since the 1950s, but it was "the 1970s [that] saw meteoric rise of" Video Home System (VHS) and Betamax tapes along with cassette players and recorders (VCRs and VTRs). *Id.*; *see Sony Corp. of Am. v. Universal City Studios, Inc.*, 464 U.S. 417, 458 n.1, 492 n.42 (1984) (Blackmun, J., dissenting) (describing the Betamax technology). Within just a few years, "video cassette recorders constitute[d] the most significant new development in the entertainment industry, possibly excepting cable, since the introduction of television itself." Home Recording of

SUMMARY OF THE ARGUMENT

The district court's order stands firm on at least seven independent grounds. This Court should affirm and enjoys the discretion to select the grounds for doing so.

I. Sony is not subject to the Act because it is not a video tape service provider. This is for two reasons.

[1] *Available at* https://kodakdigitizing.com/blogs/news/history-of-the-vhs-tape?srsltid=AfmBOopsBABKIQUr0c5eP5VZZHon2bydMzkX-RiBQqPFEZLd8Mo4jjr6 (last visited Apr. 28, 2026).

ARGUMENT

reference to its factual context," the complaint must contain sufficient "factual content to 'nudge [the claim] across the line from conceivable to plausible.'" *Id.* at 686, 680 (citation and alteration marks omitted). The Court may affirm the judgment on any ground "appearing in the record," regardless of "the reasoning of the lower court." *Jennings v. Stephens*, 574 U.S. 271, 276 (2015) (citation omitted).

ARGUMENT

I. CoStar Is Not a Video Tape Service Provider

CoStar cannot be sued under the Act because it is not a "video tape service provider." To qualify as such, a person must be "in the business" of "rental, sale, or delivery of prerecorded video cassette tapes or similar audio visual materials." 18 U.S.C. § 2710(a)(4). Only a person who meets both elements is covered by the Act. *See Christopherson v. Cinema Ent. Corp.*, 161 F.4th 525, 527 (8th Cir. 2025). CoStar fits neither.

A. Video Content Posted on CoStar's Website Is Not a Video Cassette Tape or Similar Item

CoStar is not a video tape service provider because the videos others post to its website are not "video cassette tapes or similar audio visual materials." 18 U.S.C. § 2710(a)(4). Plaintiff is incorrect in proposing that the phrase "similar audio visual materials" reaches prerecorded videos viewed over the internet. Pls. Br. 15.

1. The textual problem here, as in *Christopherson*, "is what surrounds 'audio visual' in the definition: 'similar' and 'materials.'" 161 F.4th at 528

tapes.'" *Christopherson*, 161 F.4th at 528. Moreover, "[i]mmediately after 'audio visual' is the word 'materials,'" which indicates "physical existence." *Id.* (citation omitted). These terms identify the "attributes common to" "video cassettes," including that "they can be touched." *Id.* Audio visual materials like video cassette tapes include "laser disks, open-reel movies, or CDI [compact disc] technology." S. Rep. No. 100-599, at 12 (1988).

permitted the district court to exercise. The judgment dismissing the case with prejudice should be affirmed without qualification.

CONCLUSION

The Court should affirm the district court's judgment.

Dated: April 29, 2026

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

Certificate of Compliance

This brief complies with the type-volume limitations imposed by Federal Rule of Appellate Procedure 32(a)(7)(B)(i) because it contains 11,620 words, excluding the parts of the brief exempted by Rule 32(f). This brief complies with the typeface and typestyle requirements of Federal Rules of Appellate Procedure 32(a)(5) and 32(a)(6) because it has been prepared in a proportionally-spaced typeface using Microsoft Word in 14-point Calisto MT. This brief complies with the electronic-filing requirements of Local Rule 28A(h)(2) because it was scanned for viruses and no virus was detected.

This brief complies with the type-volume limitations imposed by Federal Rule of Appellate Procedure 32(a)(7)(B)(i) because it contains 1,193 words, excluding the parts of the brief exempted by Rule 32(f). This brief complies with the typeface and typestyle requirements of Federal Rules of Appellate Procedure 32(a)(5) and 32(a)(6) because it has been prepared in a proportionally spaced typeface, 14-point EB Garamond. This brief complies with the electronic-filing requirements of Local Rule 28A(h)(2) because it was scanned for viruses and no virus was detected.

Dated: April 29, 2026

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CERTIFICATE OF SERVICE

Certificate of Service

I hereby certify that on April 29, 2026, the foregoing brief was filed with
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